

Court No. - 40

Case :- WRIT - C No. - 37218 of 2022

Petitioner :- Gajveer Singh

Respondent :- Power Corporation Limited And 2 Others

Counsel for Petitioner :- Radhey Shyam Yadav, Sukesh Kumar

Counsel for Respondent :- Madan Mohan Chaurasia

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Ajit Singh, J.

Heard learned counsel for the petitioner and Sri Madan Mohan Chaurasia, learned counsel for the electricity department.

Present writ petition is preferred with request to issue direction to the respondents to install the electricity connection of the petitioner within some stipulated period.

Learned counsel for the petitioner submits that the petitioner is resident of Village Valipur Athseli, Post Khalvara, District Farrukhabad. He applied for electricity connection of 13 HP for private Tubewell and had deposited the estimated amount of Rs.1,43,559/- on 16.11.2021 for providing electricity connection but till date the same has not been provided to him. Regarding his plight and grievance, he has already moved detailed representation on 13.12.2021 before respondent no.3 but till date the same is unattended.

Learned counsel for the respondents submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Executive Engineer, Dakshinanchal Vidyut Vitaran Nigam Limited Kayamganj, District Farrukhabad (respondent no.3) to look into the grievance of the petitioner and redress the same in accordance with law within a period of three weeks from the date of production of certified copy of this order before him.

Order Date :- 2.2.2023

Abhishek Gupta